

STATE OF NEW YORK

5104--A

2025-2026 Regular Sessions

IN ASSEMBLY

February 12, 2025

Introduced by M. of A. ANDERSON -- read once and referred to the Committee on Environmental Conservation -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the environmental conservation law, in relation to the New York state climate action council

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 75-0117 of the environmental conservation law, as
2 added by chapter 106 of the laws of 2019, is amended to read as follows:
3 § 75-0117. Investment of funds.

4 1. State agencies, authorities and entities, in consultation with the
5 environmental justice working group and the climate action council,
6 shall, to the extent practicable, invest or direct available and rele-
7 vant programmatic resources in a manner designed to achieve a goal for
8 disadvantaged communities to receive forty percent of overall benefits
9 of spending on clean energy and energy efficiency programs, projects or
10 investments in the areas of housing, workforce development, pollution
11 reduction, low income energy assistance, energy, transportation and
12 economic development, provided however, that disadvantaged communities
13 shall receive no less than thirty-five percent of the overall benefits
14 of spending on clean energy and energy efficiency programs, projects or
15 investments [and], provided; further that this section shall not alter
16 funds already contracted or committed as of the effective date of this
17 section, and provided, further that no resources described in this
18 section shall be invested or directed before undergoing the public
19 engagement process described in subdivision two of this section.

20 2. State agencies, authorities, and entities shall design and imple-
21 ment a public engagement process to guide the investment of available
22 and relevant programmatic resources as described in subdivision one of
23 this section. Such process shall be designed with the goal of maximizing

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 the involvement of disadvantaged community members in the development of
2 local clean energy and energy efficiency programs, projects, and invest-
3 ments, including in the permitting, planning, and budgeting processes
4 needed to implement such program, project, and investment decisions.
5 Such public engagement process shall include, but not be limited to:

6 (a) Coordination with local community-based organizations for the
7 planning, execution, and advertisement of meetings, forums, surveys, and
8 other opportunities for public input;

9 (b) Sufficient lead time to advertise opportunities for public input
10 before such opportunities occur;

11 (c) Fair compensation for community-based organizations and individ-
12 uals who help design, advertise, and execute on such opportunities, to
13 the extent practicable;

14 (d) A language access plan to engage non-English proficient members of
15 a disadvantaged community in the public engagement process, including
16 dedication of bilingual agency staff;

17 (e) A plan to engage and accommodate individuals with disabilities by
18 using tools such as, but not limited to, visual aids, open or closed
19 captioning, large print and Braille transcriptions, audio descriptions,
20 sign language interpretation, assistive listening devices, and wheel-
21 chair accessible entrances, exits, and spaces, wherever practicable;

22 (f) A plan to describe potential clean energy and energy efficiency
23 programs in clear and accessible language that is easily understood by
24 lay-persons; and

25 (g) Integration of the principles of cultural competence and racial,
26 ethnic, and social justice into every aspect of such public engagement
27 process.

28 3. State agencies, authorities, and entities may refer to the report
29 drafted pursuant to section six of chapter one hundred six of the laws
30 of two thousand nineteen in the design of the public engagement process
31 described in subdivision two of this section.

32 § 2. This act shall take effect on the ninety-first day after it shall
33 have become a law.